

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 99-107

WASTE DISCHARGE REQUIREMENTS
FOR
RANDY COX AND DIANE COX
DEER CREEK R.V. PARK
TULARE COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Board) finds that:

1. Randy and Diane Cox (hereafter Discharger) own and operate a recreational vehicle park called Deer Creek R.V. Park. The 24-acre site (Assessor's Parcel No. 302-340-32) is owned by the Discharger. The park is about nine miles south of Porterville and two miles northwest of Terra Bella.
2. Order No. 89-161, adopted by the Board on 22 September 1989 for Carolyn Smith, the previous owner, currently regulates discharge from the park. Randy and Diane Cox bought the park from Carolyn Smith.
3. Order No. 89-161 does not reflect the current owner of the facility and is neither adequate nor consistent with current plans and policies of the Board.
4. The park has 78 RV spaces to accommodate a maximum of 156 people. Wastewater is treated in six septic tanks. Effluent from the tanks is discharged to two leachfields.
5. The treatment and disposal system has been designed for a maximum flow of 7,800 gallons per day (gpd).
6. Source water for the park is supplied by an on-site well.
7. The park is in the southwest corner of Section 27, T22S, R27E, MDB&M, as shown in Attachment A, which is part of this Order by reference. Surface water drainage is to Deer Creek, a Valley Floor Water, which is 300 feet southwest of the site. The site lies within the Tule Delta Hydrologic Area (No. 558.20) in the South Valley Floor Hydrologic Unit, as depicted on interagency hydrologic maps prepared by the Department of Water Resources in August 1986.

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8. The *Water Quality Control Plan for the Tulare Lake Basin, Second Edition*, (hereafter Basin Plan) designates beneficial uses, establishes water quality objectives, and contains implementation plans and policies for all waters of the Basin. These requirements implement the Basin Plan.
9. The beneficial uses of Valley Floor Waters, as identified in the Basin Plan, are agricultural supply; industrial service and process supply; water contact and non-contact water recreation; warm freshwater and wildlife habitat; rare and endangered species; and groundwater recharge.
10. The beneficial uses of groundwater in the area are domestic, industrial, and agricultural supply.
11. The Basin Plan includes policies and guidelines for subsurface disposal of wastes from land developments. In order to protect water quality, the Basin Plan includes minimum set back distances of septic tanks and leaching systems from wells, streams, lakes, property lines, and cut or fill. It also includes criteria on percolation rate of the disposal area, soil depth below leaching system, depth to highest groundwater level, ground slope, and minimum usable disposal area.
12. Soils beneath the site consist of silty sand, very fine sand, and clay to depths of about 35 feet below ground surface. The depth of the soil and the ground slope of the site satisfies the minimum criteria for septic tanks and leachfield systems specified in the Basin Plan.
13. Based on the information obtained from DWR, the depth of groundwater in the area is 120 to 150 feet below ground surface. DWR records show that since 1978, the depth of groundwater has been greater than the minimum required five feet for septic tanks and leaching systems, as specified in the Basin Plan.
14. Based on the information obtained from the Department of Water Resources, the average annual rainfall in the area is 11 inches and annual average pan evaporation rate is 82 inches.
15. The Regional Board has considered antidegradation pursuant to State Board Resolution No. 68-16 and finds that the permitted discharge is consistent with those provisions, and unlikely to cause an increase in groundwater constituents above that of background levels.

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16. The action to update waste discharge requirements for this existing facility is exempt from the provisions of the California Environmental Quality Act (CEQA) in accordance with Title 14, CCR, Section 15301.
17. The Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge and has provided them with an opportunity for a public hearing and an opportunity to submit their written views and recommendations.
18. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that Order No. 89-161 is rescinded and Randy Cox and Diane Cox, their agents, successors, and assigns, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

A. Discharge Prohibitions

1. Discharge of waste to surface waters or surface water drainage courses is prohibited.
2. Bypass or overflow of treated or untreated waste is prohibited.
3. Discharge of waste classified as 'hazardous,' as defined in Section 2521 (a) of Title 23, CCR, Section 2510, et seq., or 'designated,' as defined in Section 13173 of the California Water Code, is prohibited.

B. Discharge Specifications

1. The monthly average discharge shall not exceed 7,800 gpd.
2. Objectionable odors originating from the septic tank/leachfield system shall not be perceivable.
3. The maximum conductivity (specific electrical conductance at 25° C, also EC) of the discharge shall not exceed the source water EC plus 500 μ mhos/cm.

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4. The septic tanks shall be operated and maintained in a manner that precludes discharge of sludge and scum to the leachfields. Specifically, the septic tanks shall either be inspected or pumped annually. If inspected, then the tanks shall be pumped whenever it appears that sludge or scum will begin to carry-over into the leachfields, when solids accumulation in any of the tanks is 75% of the usable solids storage volume of the tank, the scum layer is within three inches of the bottom of outlet pipe, or the sludge level is within eight inches of the bottom of the outlet pipe, whichever is more restrictive.
5. The Discharger shall maintain the following set back distances:

	<u>Domestic Well</u>	<u>Property Line</u>	<u>Lakes or Reservoirs</u> ¹	<u>Flowing Streams</u> ²
Septic Tank	50	25	50	50
Leachfield	100	50	200	100

¹ As measured from the high water line.

² As measured from the line which defines the limit of a 10-year frequency flood.

C. Sludge Disposal Specifications

1. Collected sludges, scums, and other solids removed from liquid wastes shall be disposed of in a manner approved by the Executive Officer and consistent with *Consolidated Regulations for Treatment, Storage, Processing, or Disposal of Solid Waste*, as set forth in Title 27, CCR, Division 2, Subdivision 1, Section 20005, et seq.
2. Any proposed change in sludge use or disposal practice shall be reported to the Executive Officer and USEPA Regional Administrator **at least 90 days in advance** of the change.

D. Groundwater Limitations

The discharge, in combination with other sources, shall not cause underlying groundwater to contain waste constituents in concentrations statistically greater than background water quality, except conductivity. Regarding conductivity, the Discharger shall not cause underlying groundwater to exceed an incremental increase in conductivity greater than 30 $\mu\text{mhos/cm}$ over any five-year period.

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E. Provisions

1. The Discharger shall comply with Monitoring and Reporting Program No. 99-107, which is part of this Order, and any revisions thereto as ordered by the Executive Officer.
2. The Discharger shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements," dated 1 March 1991, which are attached hereto and by reference a part of this Order. This attachment and its individual paragraphs are commonly referenced as "Standard Provision(s)."
3. Septic tank cleanings shall be performed only by a duly authorized service.
4. The Discharger shall ensure that formaldehyde, zinc, phenol, and similar chemicals associated with recreational vehicles do not deleteriously affect the septic system or impact groundwater.
5. The Discharger must comply with all conditions of this Order, including timely submittal of technical and monitoring reports as directed by the Executive Officer. Violations may result in enforcement action, including Regional Board or court orders requiring corrective action or imposing civil monetary liability, or in revision or rescission of this Order.
6. A copy of this Order shall be kept at the facility for reference by the personnel responsible for wastewater management. These persons shall be familiar with its contents.
7. The Board will review this Order periodically and will revise requirements when necessary.

I, GARY M. CARLTON, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 28 July 1999.


GARY M. CARLTON, Executive Officer

SH:sh/fmc:7/28/99

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

MONITORING AND REPORTING PROGRAM NO. 99-107

FOR
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DEER CREEK R.V. PARK
TULARE COUNTY

Specific sample station locations shall be established with concurrence of the Board's staff, and a description of the stations shall be submitted to the Board and attached to this Program.

SEPTIC TANK MONITORING

All septic tanks shall be inspected and pumped as described below. An inspection is not required during the year a septic tank is pumped.

<u>Constituent</u>	<u>Units</u>	<u>Type of Measurement</u>	<u>Frequency</u>
— Sludge Depth	feet	Staff Gauge	Annually ¹
Total Volume of Sludge (A)	Ft ³	Calculated	Annually ¹
Total Useable Sludge Storage in Tank (B)	Ft ³	Calculated	Annually ¹
Percent Full (A/B)	%	Calculated	Annually ¹
— Scum Thickness	feet	Staff Gauge	Annually ¹
— Distance Between Bottom of Scum Layer and Bottom of Outlet Device	inches	Staff Gauge	Annually ¹
— Distance Between Top of Sludge Layer and Bottom of Outlet Device	inches	Staff Gauge	Annually ¹

¹ In lieu of septic tank measurement, the septic tanks may be pumped annually. The Discharger shall maintain a log of all septic tank cleanings. At a minimum, the log shall include the date of the cleaning, and the name, address, phone number, and license number of the cleaner.

EFFLUENT MONITORING

Monitoring of septic tank effluent shall include the following:

<u>Constituent</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Frequency</u>
— Flow ¹	gallons/day	Estimate	Monthly
EC	µmhos/cm	Grab	Monthly
— Formaldehyde	mg/l	Grab	Annually
— Zinc	mg/l	Grab	Annually
— Phenol	mg/l	Grab	Annually
— Total Nitrogen	mg/l	Grab	Annually

¹ The Discharger shall estimate flow in a manner approved by the Executive Officer.

WATER SUPPLY MONITORING

A sampling station shall be established where a representative sample of the water supply can be obtained. Water supply monitoring shall include at least the following:

<u>Constituent</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Frequency</u>
EC	µmhos/cm	Grab	Annually

REPORTING

By 1 September 1999, the Discharger shall submit planned procedures for estimating flow. Monthly flow estimates and EC readings along with annual monitoring data shall be summarized in a report and submitted to the Board by 20 January of each year.

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In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernible. The data shall be summarized in such a manner that illustrates clearly whether the Discharger complies with waste discharge requirements.

If the Discharger monitors any pollutant at the locations designated herein more frequently than is required by this Order, the results of such monitoring shall be included in the discharge monitoring report.

The Discharger may also be requested to submit an annual report to the Board with tabular and graphical summaries of the monitoring data obtained during the previous year. Any such request shall be made in writing. The report shall discuss any corrective actions taken or planned which may be needed to bring the discharge into full compliance with the waste discharge requirements.

By 20 January of each year, the Discharger shall submit a written report to the Executive Officer containing the following:

- a. The names, certificate grades, and general responsibilities of all persons in charge of wastewater treatment and disposal.
- b. The names and telephone numbers of persons to contact regarding wastewater disposal for emergency and routine situations.

All reports submitted in response to this Order shall comply with the signatory requirements in Standard Provision B.3.

The Discharger shall implement the above monitoring program on the first day of the month following adoption of this Order.

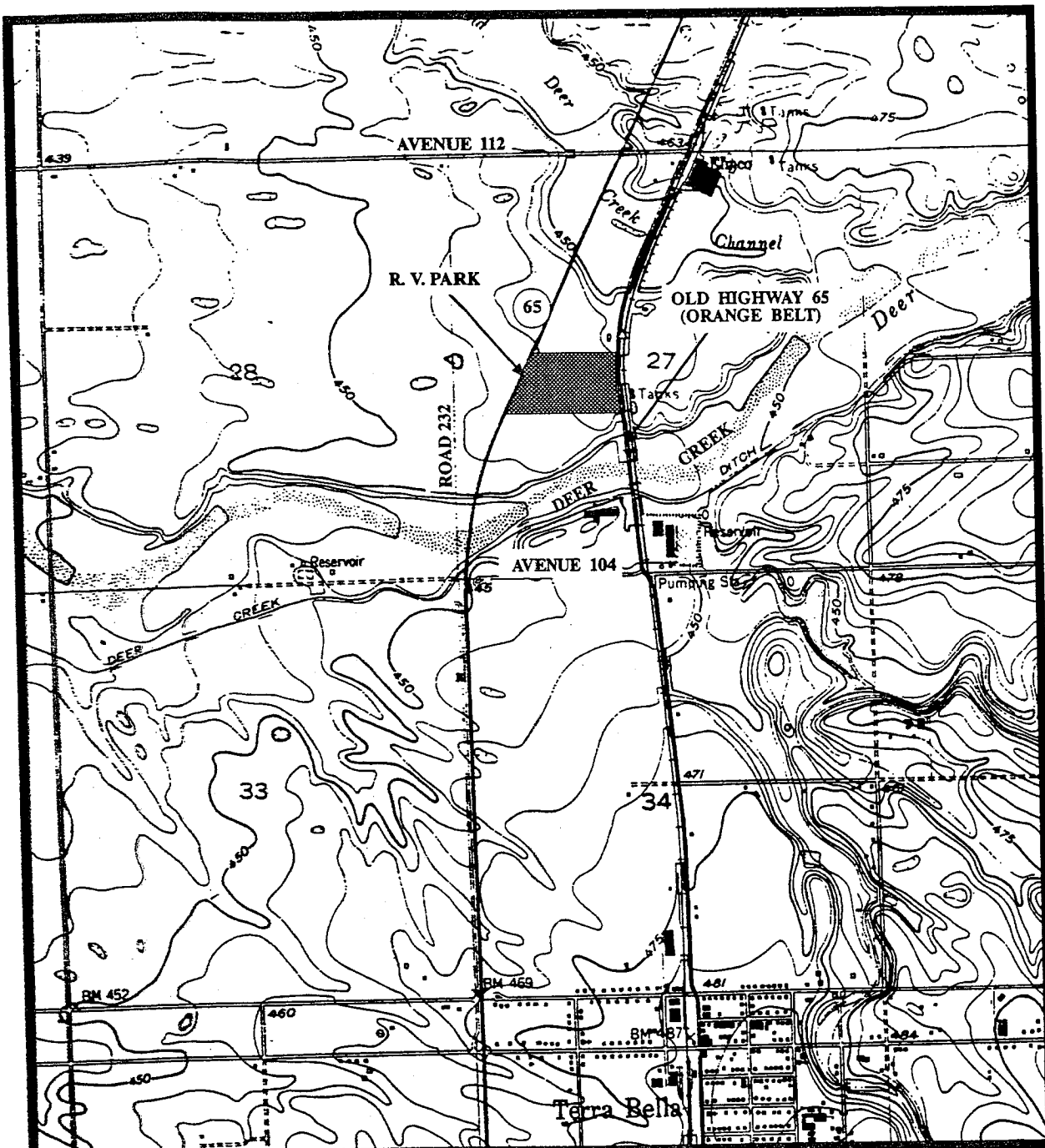
Ordered by:


GARY M. CARLTON, Executive Officer

28 July 1999

(Date)

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ATTACHMENT A
Vicinity Map

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Section 27, T22S, R27E, MDB&M
Ducor, 7 1/2' USGS Quad, 1952

INFORMATION SHEET

ORDER NO. 99-107
RANDY COX AND DIANE COX
DEER CREEK R.V. PARK
TULARE COUNTY

Randy and Diane Cox own and operate a recreational vehicle park called Deer Creek R.V. Park near Terra Bella. The park is between Orange Belt Drive (Old Highway 65) and New Highway 65, south of Avenue 112 and two miles northwest of Terra Bella. The park is about 110 feet north of Deer Creek.

The park consists of 78 RV spaces. Wastewater is treated in six septic tanks and disposed at two leachfields. The park has been designed for a maximum flow of 7,800 gallons per day. The leachfields are about 300 feet away from the 100 year flood plain of Deer Creek.

The average annual rainfall in the area is 11 inches and annual average pan evaporation rate is 82 inches.

The Order has a EC limit of source water EC plus 500 $\mu\text{mhos/cm}$. This is based on the maximum allowable limit in the Water Quality Control Plan for the Tulare Lake Basin, Second Edition (Basin Plan). The treatment facility receives wastes at its dump station that may cause the effluent to approach the maximum allowable limit.

The Basin Plan specifies criteria for septic tanks and leaching systems. The Order includes minimum set back distances of septic tanks and leachfields from wells, property line, lakes and reservoirs, and flowing streams, based on the Basin Plan criteria.

Soils beneath the site consist of silty sand, very fine sand, and clay to depths of about 35 feet below ground surface. The depth of the soil and the ground slope of the site satisfies the minimum criteria for septic tanks and leachfield systems specified in the Basin Plan.

Based on the information obtained from DWR, the depth of groundwater in the area is 120 to 150 feet below ground surface. DWR records show that since 1978, the depth of groundwater has been greater than the minimum required five feet for septic tanks and leaching systems specified in the Basin Plan.

This Order includes groundwater limitations based on the Basin Plan.

This Order requires the Discharger to either pump the septic tanks at least annually or inspect it annually to make sure that the septic system operates effectively so that neither solids nor grease

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are carried over to the leachfields. To assure that pumped septage from the septic tanks is properly handled and dumped at an authorized place for effective treatment, the Order requires the Discharger to use only licensed septic tank cleaning services.

Chemicals used for control of odors in RV tanks usually contain formaldehyde, zinc, and phenols as active ingredients. These chemicals are toxic at certain concentrations. The Order includes narrative language that requires the discharge to be such that these chemical constituents will not adversely affect the treatment system and affect groundwater. Also, the Discharger is required to monitor these constituents annually.

Small septic tank/leachfield systems are not usually a threat to groundwater provided they are in conformance to the Board's policies and guidelines, are not too dense, and the nitrogen discharged is a normal amount. The discharge at this site appears to conform to the Board's policies and guidelines, is quite a distance from any other systems, and consists of just domestic waste. Therefore, it is not expected to impact groundwater. The Order requires the Discharger to monitor the effluent for nitrogen to characterize the effluent nitrogen quality under normal operating conditions.

This is an existing facility and the action to update requirements is exempt from the provisions of the California Environmental Quality Act (CEQA) in accordance with Title 14, CCR, Section 15301.

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